

9:00 AM

Line 5

25-CIV-07605 JEEWON PARK BY AND THROUGH HIS CONSERVATOR HAE SOO
PARK VS. ANTHONY DIODATI, ET AL

JEEWON PARK BY AND THROUGH HIS CONSERVATOR MARC LIBARLE
HAE SOO PARK
ANTHONY DIODATI

ROBYN H. SHIELDS

Defendant Anthony Diodati's Motion to Strike portions of Plaintiff's First Amended Complaint

TENTATIVE RULING:

Defendant Diodati's unopposed Motion to Strike portions of Plaintiff's First Amended Complaint was filed concurrent with its Demurrer also heard on this calendar. The factual summary is not repeated as it would be redundant. The motion is GRANTED in part and DENIED in part.

Defendant seeks to strike the 4th Cause of Action (COA) for Punitive Damages, the not-numbered (12th) COA for Exemplary Damages, and all other references to punitive and/or exemplary damages. Notice of Demurrer and Mtn. to Strike, pg. 3, lines 13-19.

Punitive damages may be recovered "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (a).)

"'Malice' is means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code §3294, subd. (c)(1).)

"'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294, subd. (c)(2).)

"A person acts with knowing disregard when the person is aware of the probable dangerous consequences of the person's conduct and deliberately fails to avoid those consequences." (CACI No. 3940.)

"'Despicable conduct' is conduct that is so vile, base, or contemptible that it would be looked down on and despised by reasonable people." (CACI No. 3940.)

Here, the assaultive conduct alleged by Plaintiff is, as pleaded, conduct intended by the defendant to cause injury or carried on with willful and conscious disregard of Plaintiff's safety – which is the definition of malice. The alleged unauthorized entry into Plaintiff's apartment adds a dimension further supporting punitive damages in relation to the underlying assault and battery.

(*See Sprinks, supra*, 171 Cal.App.4th at 1055-56 [holding that causes of action for trespass and forcible entry can support punitive damages where landlord's acts are willful and potentially outrageous].)

Accordingly, Defendant's motion to strike is DENIED as to Plaintiff's claim for punitive damages in the 4th COA and in the prayer.

However, Defendant's motion to strike is GRANTED as to Plaintiff's not-numbered (12th) COA for exemplary damages, which are redundant of the claim for punitive damages. (*Los Angeles Unified School District v. Superior Court* (2023) 14 Cal.5th 758, 768 [acknowledging that "punitive damages . . . are sometimes referred to as exemplary damages].)

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 6

26-CIV-03625 IN RE: VINTAGE EQUITY GROUP, LLC

VINTAGE EQUITY GROUP, LLC

JUAN CARLOS LOZANO

Petitioner's Petition for Approval for Transfer of Payment Rights by and Between Payee, Elisabeth Lohier, and Petitioner

TENTATIVE RULING:

For the reasons stated below, Petitioner Vintage Equity Group, LLC's ("Petitioner" or "Vintage") currently unopposed "Verified Petition for Approval for Transfer of Structured Settlement Payment Rights Pursuant to California Insurance Code § 10134 et. seq.," filed May 5, 2026, is conditionally GRANTED. (Ins. Code Sect. 10134, *et. seq.*)

The Petition is granted conditioned upon Petitioner showing compliance with the service requirements set forth in Ins. Code. §§ 10134(g) and 10139.5(f)(2), which require that Petitioner serve all relevant documents on all interested parties, including the Petition (with attached Exhibits) and notice of the Aug. 28, 2026 hearing date. The Court is unable to locate in the Court's file any proof(s) of service showing that the payee ("E.L") and/or the "Obligor" (Brighthouse Life Insurance Company) were served with either the Petition itself (including each of the attached Exhibits) or the July 8, 2026 order re-setting the hearing date for Aug. 28, 2026.

If they were served in advance of this hearing, then Vintage's counsel is to e-file and email courtesy copies of these proof(s) of service to dept20@sanmateocourt.org before this hearing.

If they were not served at all, then Vintage's counsel is to still email Dept. 20 to advise there are no proof(s) of service. In which case, the Court will retract the conditional grant, and instead continue the hearing to a future date to allow proper service. Before the next hearing date in addition to curing service, Vintage should then address the following potential issues:

None of the Exhibits to the Petition, filed May 5, 2026, is signed/executed. (See Petition, attached Exhibit A ("Structured Settlement Payment Right Purchase & Assignment Agreement"); Exhibit B ("California Disclosure Notice"); Exhibit C (Declaration ISO Request to Transfer Structured Settlement Payments); Exhibit D ("Statement of Independent Professional Advice"); Exhibit E ("Seller Dependents") and Exhibit F ("Certificate of Marital Status."))
